

25STCV33404 25STCV33404

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-07-28

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Case Number: 25STCV33404 Hearing Date: July 28, 2026 Dept: 512

HEARING DATE: Tuesd., July 28, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Kelton

Associates v. CSC Serviceworks COMP.

FILED: 11-17-25

CASE NUMBER: 25STCV33404 TRIAL DATE: 04-05-27

NOTICE: OK

PROCEEDINGS: MOTION

TO COMPEL DISCOVERY (x3) AND DEEM MATTERS ADMITTED AND REQUESTS FOR MONETARY
SANCTIONS

MOVING PARTY: Plaintiff

Kelton Associates, L.P.

RESP. PARTY: Defendant CSC ServiceWorks, Inc.

MOTIONS TO COMPEL INITIAL RESPONSES TO DISCOVERY AND DEEM MATTERS
ADMITTED AND REQUESTS FOR MONETARY SANCTIONS

(CCP §§ 2030.290, 2031.300, 2033.280)

TENTATIVE RULING:

Plaintiff's motion to

compel responses to form interrogatories, special interrogatories, and requests

for production of documents are GRANTED. Defendant is ordered to provide sworn verifications within 10 days of this Order.

Plaintiff's motion to deem matters admitted is DENIED as moot. Defendant is ordered to provide sworn verifications within 10 days of this Order.

Defendant is ordered to pay \$1,840.00 to Plaintiff and/or its counsel of record within 30 days of this Order.

Plaintiff is ordered to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address (CCP §§ 1013, 1013a) OK

☒ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed on June 17, 2026 ☐ Late ☐ None

REPLY: None as of July 22, 2026 ☐ Late ☒ None

ANALYSIS:

I.
Background

This is a commercial lease dispute. On November 17, 2025, plaintiff Kelton Associates, L.P. filed its complaint against defendant CSC ServiceWorks, Inc., asserting claims for breach of contract, ejectment and trespass, nuisance, and related causes of action.

On May 28, 2026, Plaintiff filed the instant three motions to compel responses to discovery – Form Interrogatories, Special Interrogatories, and Requests for Production – and to deem matters admitted, and requested monetary sanctions in connection with each. Plaintiff contends Defendants' all-objection responses to discovery are no responses at all and are unverified.

On June 17, 2025, Defendant filed oppositions to each motion. Defendant contends its all-objection responses were warranted under the circumstances and do not require verification, and because it served responses, Plaintiff was required to meet and confer in good faith and satisfy other requirements for a motion to compel further, not initial, responses.

II.

Legal

Standard & Discussion

A.

Moving Party

Position

Plaintiff argues Defendant served what purport to be all-objection responses on February 20, 2026. But those all-objection responses were not signed by counsel, and therefore do not qualify as responses. And they contained assertions of factual defenses, e.g., that Plaintiff's claims are moot because Defendant removed equipment from Plaintiff's premises on February 2, 2026. Those factual contentions required verification. Defendant then served supplemental responses on April 24, 2026. Those responses are signed by counsel, but they also contain factual statements that were not verified under oath. As a result, Defendant's responses are no responses at all, and Plaintiff is entitled to an order compelling Code-compliant responses.

B. Opposition

In Opposition, Defendant argues it served responses, and Plaintiff should have filed a motion to compel further, rather than initial, responses. The motion should be denied because Plaintiff

did not attempt to meet and confer regarding Defendant's responses, nor did Plaintiff file a separate statement as required.

C. Analysis

Legal Standard

Pursuant to Code of Civil Procedure

section 2030.290, "[i]f a party to whom interrogatories are directed fails to serve a timely response . . . [t]he party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or the protection for work product under Chapter 4 (commencing with Section 2018.010. . . . [and] The party propounding the interrogatories may move for an order compelling response to the interrogatories." (Code Civ. Proc., § 2030.290 (a)-(b).)

Similarly, under Code of Civil Procedure section

2031.300, "[i]f a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it . . . [t]he party to whom the demand for inspection, copying, testing, or sampling is directed waives any objection to the demand, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010. . . . [and] The party making the demand may move for an order compelling response to the demand. (Id., § 2031.300(a)-(b).)

Pursuant to Code of Civil Procedure section 2033.280,

subdivision (a), "[i]f a party to whom requests or admission are directed fails to serve a timely response...[t]he party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product[.]" (Id., § 2033.280(a).)

Where a party fails to respond to requests for admissions, the propounding party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction. (Id., § 2033.280 (b).) The court "shall" grant a motion to deem admitted the matters specified in the requests for admissions, "unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for

admission that is in substantial compliance with Section 2033.220.” (Id., § 2033.280(c).)

“The court shall impose a monetary sanction under [section 2023.010 et seq.] against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel [initial responses] ... unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §§ 2030.290(c) [interrogatories], 2031.300(c) [requests for production]; 2033.280(c) [requests for admission].) The sanction shall “order[] that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” (Id., § 2023.030(a).) “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Court, rule 3.1348(a).)

Discussion

Defendant

does not dispute that its responses were not verified. (See Opp. to F-Rogs Mot., 2:1-4.) A review of the responses demonstrates they contain factual assertions that required verification under oath: that, for example, “[s]ubject to and without waiving the foregoing objections, CSC ServiceWorks, Inc. states that it removed the equipment that is the subject of this dispute from Plaintiff’s premises on February 2, 2026.” (Kellener Decl. iso RPDs Motn., Exh. A, 3:24-26; Exh. D, 3:6-12.) An unverified factual response to discovery is no response at all. (Allen-Pacific, Ltd. V. Superior Court(1997) 57 Cal.App.4th 1546, 1551.) Plaintiff is entitled to an order compelling responses.

That

said: a review of the initial responses indicates that, contrary to Plaintiff’s assertions, they were signed by Defendant’s counsel, even though their statements were not verified. (See Kellener Decl. iso RPDs Motn., Exh. D, p. 59.) The Court finds the objections signed by counsel to be effective; although Plaintiff is entitled to an order compelling responses, Defendant has not waived its objections.

Plaintiff's

motions to compel are GRANTED. Defendant must provide verifications under oath of the factual substance of its responses within 10 days of this order. Until these verifications are provided, no effective response has been provided. Plaintiff may then resort to motions to compel further responses as necessary after Defendant verifies its responses.

The motion to deem matters admitted is

DENIED as moot. Defendant's responses

substantially comply with the Code and were served before the hearing on Plaintiff's motion, and Defendant reasonably believed it had complied with its obligations; any violation of the Code amounts to excusable mistake or neglect. (See Code Civ. Proc., § 2033.280(c).) Defendant is to provide verifications to the RFA within 10 days of this order.

Plaintiff

is entitled to sanctions for its successful motions to compel. Defendant does not demonstrate substantial justification for its failure to provide verifications for its factual responses in either its initial or its supplemental responses to discovery.

Plaintiff requests sanctions of

\$860.00 in connection with each of its motions. The Court finds the Notice of Motion complies with Code of Civil Procedure section 2023.040.

Given the straightforward nature of

the Motions, Plaintiff's request for monetary sanctions against Defendant and defense counsel is GRANTED in the reduced total amount of \$1,840.00, reflecting 4 hours incurred at an hourly rate of \$400 per hour plus filing fees of \$240.00.

The Court grants sanctions in the reduced total amount of \$1,840.00.

III.

Conclusion & Order

Plaintiff's motion to

compel responses to form interrogatories, special interrogatories, and requests for production of documents are GRANTED. Defendant is ordered to provide sworn

verifications within 10 days of this Order.

Plaintiff's motion to deem matters

admitted is DENIED as moot. Defendant is ordered to provide sworn verifications within 10 days of this Order.

Defendant is ordered to pay \$1,840.00

to Plaintiff and/or its counsel of record within 30 days of this Order.

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